TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
NOVEMBER 25, 2019
MINUTES

Attachment 1—**Staff Report**

Present: Joseph Belton, Chair, Barry Wolff, Megan Stevens, Stephen Duke, Glyn Cowden.
Absent: David Rubin, Stephen Wood.
Staff: Michele Canon, Lynnette Lynes

Mr. Belton called the meeting to order at 6:00 pm.

A. Approval of Agenda
B. Approval of Minutes

▶ *Mr. Wolff moved for approval of the agenda and minutes. Mr. Duke seconded the motion. All in favor.*

C. Public Comment

▶ Mr. Wolff asked the Board to keep Mr. Rubin in their thoughts as he is dealing with a serious illness.

There being no further comments, Mr. Belton continued with the agenda.

D. General Correspondence

Ms. Canon stated that the applicant for Case V-38-19 had additional correspondence that was distributed to the Board.

E. Administration of Oath

▶ Mr. Belton administered the oath to those speaking.

F. Business

1. **Case S-10-19, 1458 Seminole Street, TMS# 532-10-00-069, Request for a Special Exception in accordance with the standards of §156.325 Principle**

Use Table, §156.326 (C)(5)(e)(1-6), and §156.411 (A)(3) to allow a Bed and Breakfast. CORRESPONDENCE

- Ms. Canon reviewed staff comments with the Board (attachment 1).

Ms. Deborah Crowell, owner, reviewed the request with the Board.

There being no comments, Mr. Belton closed public comments.

- *Mr. Wolff moved for approval based on the findings that all requirements have been met. Mr. Cowden seconded the motion. All in favor.*

2. Case V-38-19, 424 McCants Dr., TMS# 532-05-00-188, Request for relief from the strict application of §156.107 (C) to allow an approximately 6-feet, 1-inch setback. A fifteen foot setback is required for an accessory structure on a corner lot.

- Ms. Canon reviewed staff comments with the Board (attachment 1).

Mr. Neil Stevenson, architect, reviewed the request with the Board.

There being no comments, Mr. Belton closed public comments.

Mr. Belton asked how the setbacks are determined. Ms. Canon answered that the most narrow side of the lot would be considered the front yard. She stated that because it is a corner lot, the accessory structures would have two front setbacks.

Mr. Wolff suggested that the layout could be adjusted to allow the pool in the backyard without encroachment into the setback. He suggested that there was a previous case that was similar to this that was denied by the Board. He suggested that the request does not meet all the criteria for a variance.

Mr. Belton asked if not for the fact that this was a corner lot, would the pool meet the setbacks. Ms. Canon answered in the affirmative. Mr. Belton suggested that there is a hardship due to the size of the house, but agreed that there might be a way to reconfigure the pool to be within the setbacks and out of the tree protection zones.

Ms. Stevens asked if there was an issue with the position of the original house. Ms. Canon answered that the setbacks requirements were different when the house was originally constructed.

Mr. Cowden asked if the pool could be moved. Mr. Stevenson answered that they looked at several options and this layout was determined to be the best.

Mr. Belton asked if the design could be changed. Mr. Stevenson answered in the negative. Mr. Belton asked if there was another pool located on a corner lot. Mr. Stevenson answered that there is one on Royall Ave. Mr. Belton suggested that deferral might be in order for the applicant to consider different options or provide information on other instances.

Ms. Stevens suggested that this is a unique instance because of being a corner lot and that the addition is modest.

- *Ms. Stevens moved for approval of the request based on the findings that it is an unusual lot and the protected trees on the lot. Mr. Cowden seconded the motion. Motion passed on 4 to 1 vote with Mr. Cowden, Mr. Belton, Ms. Stevens, and Mr. Duke in favor; Mr. Wolff opposed.*

G. Approval of Final Orders

The Board signed final orders.

There being no further business, the meeting adjourned at 6:35 pm.

Submitted by,
L. Lynes
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